



File No.: EXP202308946

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on May 19, 2023. The complaint is directed against AYUNTAMIENTO DE VALDEMORILLO with NIF P2816000J (hereinafter, the respondent).

In said document, the complainant claims to be a member of the municipal corporation being complained about and to have participated in the plenary session of said entity held on ***DATE.1. This event took place at the town hall and was characterized by its public nature, with in-person attendance by citizens of the municipality. It also indicates that it was broadcast live through the town hall's YouTube channel and remains accessible both on that channel and on the town hall's website. The respondent claims that during the aforementioned plenary session on ***DATE.1, two councilors revealed private information about the complainant's tax situation. It asserts that this information regarding a seizure order could only have been known to them in their capacity as councilors, as they have access to the General Registry of the town hall.

Specifically, it states that on ***DATE.2, a notification from the Tax Agency regarding a seizure order directed against the complainant was registered at the Town Hall. It states that the aforementioned councilors, being aware of this information, made public comments during the plenary session about the receipt of the seizure order at the town hall, urging the complainant to pay their debts.

For evidentiary purposes, the complainant attaches to their document:

- The links to the town hall's YouTube channel and website where the broadcast of the aforementioned plenary session can be viewed.
- The seizure order directed against the complainant, the content of which they assert was known to the mentioned councilors.
- The specific time intervals of the video in which references to said data were made by certain members of the corporation:

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SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The notification of the transfer, which was carried out electronically in accordance with the provisions of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on June 29, 2023, as evidenced by the acknowledgment of receipt in the file.

On August 4, 2023, this Agency received a response from the respondent indicating that “in no way was information regarding the administrative situation of Mr. A.A.A. with respect to this town hall disclosed, as the recommendations that have been developed for this Town Hall regarding Data Protection are scrupulously followed.” For this purpose, it attached to its document the aforementioned recommendations made by an audit.

THIRD: On August 19, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

FOURTH: On November 22, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public

Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.f) of the GDPR and Article 32 of the GDPR, classified in Articles 83.5 and 83.4 of the GDPR, respectively.

FIFTH: The aforementioned initiation agreement was notified in accordance with the provisions established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and the respondent submitted a written statement in which, in summary, it expressed the following:

- It argues that no infringement of data protection regulations has occurred that would involve the unauthorized dissemination of personal data of individuals. It contends that, at the time of the events, the complainant was (...). Therefore, it considers that the complainant was not in the same position as an individual facing the Administration, as they had the same level of access to administrative data as any other member of the corporation.
- It claims that during the plenary session, no specific data regarding the complainant's situation was provided that could constitute an infringement. It describes the comments made in the plenary as part of a usual exchange of criticisms in the context of political debates among the different groups of the corporation, with no intention to disclose specific aspects beyond that political discussion.

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It is stated that any more specific data related to the administrative situation of the claimant mentioned during the session was introduced by the interested party themselves as part of the dynamics of political discussion and in response to the topics debated at that time.

SIXTH: On March 12, 2024, a proposal for resolution was formulated, proposing that the Director of the Spanish Agency for Data Protection declare that the AYUNTAMIENTO DE VALDEMORILLO, with NIF P2816000J, has infringed the following articles:

- Article 5.1 f) of the GDPR, classified under Article 83.5 of the same text.
- Article 32 of the GDPR, classified under Article 83.4 of the same text.

SEVENTH: The proposal for resolution was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and after the period granted for the formulation of allegations had elapsed, it has been confirmed that no allegations have been received from the party being claimed.

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: It has been confirmed that the claimant, being a member of the municipal corporation, participated in the plenary session held on ***DATE.1. This event took place at the Town Hall and was attended in person by citizens of the municipality.

The plenary session was broadcast live through the Town Hall's YouTube channel and is accessible to the public both on this channel and on the official website of said entity. This circumstance has been corroborated through the links provided by the claimant in their writing.

SECOND: It has been established that during the plenary session of ***DATE.1, two councilors belonging to the town hall mentioned data related to the tax status of the claimant. This fact is evident from the viewing of the plenary session, highlighting the following intervals where the mentioned councilors expressly indicated tax-related information pertaining to the claimant:

- 2:21:10 - 2:21:30. "pay the debts you have, pay your debts with the Treasury"
- 2:24:05 - 2:24:30 "we have knowledge of the embargo orders that weigh upon you."

THIRD: It has been established that the tax-related information disseminated by the mentioned councilors derived from an embargo order, expressly referring to the claimant, which was registered in the general registry of the party being claimed on ***DATE.2 and to which all councilors of that corporation had access.

FOURTH: It has been established that the party being claimed requested the preparation of an

external audit report, which aimed to show the situation concerning all aspects related to the current regulations on data protection. It has been confirmed that this report was issued on 30/05/2022 and in whose conclusions the situation of the party being claimed, in relation to the level of compliance with the legislation on security, was qualified as “unfavorable”:

“In the auditor's opinion, the situation of the Town Hall of Valdemorillo regarding the level of compliance with the current legislation on the security of personal data concerning its processing is NOT FAVORABLE.”

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Allegations to the initiation agreement

In response to the allegations presented by the entity being claimed, it is appropriate to point out what is stated below.

First, regarding the nature of the public office held by the claimant and alleged by the party being claimed, it is important to highlight that the regulations on personal data protection and the rights derived from it apply universally to all natural persons, regardless of the position or office held by such persons. This is evident from the very scope of application established in the GDPR, whose first article states that:

“This Regulation establishes the rules relating to the protection of natural persons with regard to the processing of personal data and the rules relating to the free movement of such data.”

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While there are exceptions for certain areas indicated by Article 2 of the same regulation (among which the case at hand is not included), the subjective scope of application is always the same, as long as the affected party is a natural person for its application to proceed and all the principles recognized therein must be respected. Consequently, the claiming party, even as a member of a municipal corporation and subject to political debate, retains their rights under data protection regulations, including the right to be protected against the unlawful or improper processing of their personal data. On the other hand, the access to information that members of the municipal corporation claim, which is recognized by local regulations, aims to facilitate the exercise or development of the functions of the aforementioned members.

Secondly, regarding the allegation that specific data of the claiming party was not provided, it must be indicated that mere knowledge of the existence of a seizure order against them constitutes personal data related to their financial situation. Knowledge of such information, even in general terms, can have a significant negative impact on the reputation of the affected individual, in addition to violating the principle of confidentiality guaranteed by the GDPR.

This assertion is consistent with the concept of “processing” established by Article 4 of the GDPR:

“any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other

form of enabling access, alignment, combination, restriction, erasure or destruction;"

Finally, the claiming party asserts that any additional specific data related to the administrative situation of the claimant was introduced by the claimant themselves as part of the political discussion dynamics. In this regard, it is appropriate to point out that any additional specific data that may have been expressed during the plenary interventions arises from the breach of confidentiality regarding the claimant's data that had occurred and which was subsequently disclosed publicly.

This reaction from the claiming party, consisting of a defense following the unauthorized and public access and dissemination of their tax situation, should not be interpreted as a validation of the access to such information that had occurred.

III

Unfulfilled obligation of Article 5.1 f) GDPR

According to paragraph 1.f) of Article 5 GDPR, data must be:

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"treaties in such a way as to ensure an adequate security of personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, through the application of appropriate technical or organizational measures ('integrity and confidentiality')"

Similarly, Recital 39 of the GDPR states: "Personal data must be processed in a manner that ensures an adequate level of security and confidentiality of personal data, including to prevent unauthorized access or use of such data and the equipment used for processing."

The principle of confidentiality, according to the aforementioned Article 5.1 f) of the GDPR, requires the protection of personal data against unauthorized or unlawful processing and against accidental loss, destruction, or damage. This principle is essential to guarantee the security of personal data, constituting a key pillar in the protection of individual rights in this area. Conversely, the violation of this principle can have unintended consequences, reflecting its importance within the regulatory framework of data protection.

In the present case, after reviewing the documents provided by both parties, a breach of the aforementioned principle of confidentiality is evident.

Compliance with the principle of confidentiality entails the adoption and implementation of measures of all kinds, both technical and organizational. In this case, the fact that certain councilors of the City Council could access personal tax information of the responding party highlights the absence or inadequacy of such measures. Specifically, the possibility of accessing personal information of one of the councilors through the General Registry of the City Council suggests a lack of adoption of appropriate technical and organizational measures to ensure the security, in this case, of the claimant's data, and to prevent access to personal data by unauthorized third parties.

Thus, free access to the registry manifests a lack of adequate access controls and profiling within the city council, which should have limited access to personal data based on necessity and relevance for the functions of the councilors. This is particularly relevant in the context of the General Registry, which stores documents addressed not only to the city council but also to other administrations, as permitted by Article 16 of Law 39/2015 on Common Administrative Procedure of Public

Administrations, and among whose content special categories of personal data as provided in Article 9 of the GDPR can be found.

It is worth noting that, although Article 77 of Law 7/1985 of April 2 on the Bases of Local Regime (LBRL) establishes that members of local Corporations have the right to access data and information for the development of their function, such access is regulated and does not imply indiscriminate access to all information, especially when it comes to personal data. Article 77 itself establishes, on the one hand, a material limit, stating that the data must be necessary for the exercise of their function; and on the other hand, a procedural limit, indicating that it must be carried out through a request that will be resolved with justification within five days.

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following. The free and unlimited access to the content of the resources exceeds the content of the right of access by members of the Local Corporations regulated by the aforementioned article, as well as by Articles 14 to 16 of the Regulation on Organization and Functioning and Legal Regime of Local Entities (ROF) that develop this procedure.

In the case at hand, the information regarding the tax situation of the claimant originated from a seizure order that had been registered at the City Council, to which the councilors had access. However, access to this information should have been limited to authorized and competent personnel within the City Council to fulfill the corresponding administrative purposes, thus preventing unauthorized processing of such personal data.

The violation of the principle of confidentiality lies, therefore, in that the tax data of the claimant were accessible to all councilors of the City Council, without any justification supporting such indiscriminate access. Confidentiality implies, among other measures, limiting access to personal data solely to those individuals who need to know it based on their specific responsibilities and always under certain pre-established criteria. The failure to implement measures that adequately restricted this access, allowing access to personal data without an objective reason, resulted in the City Council's non-compliance with its obligation to guarantee the confidentiality of the claimant's data.

Consequently, this lack of security measures violates the principle of confidentiality of Article 5.1 f) by failing to protect the data against unnecessary and unauthorized access within the same Corporation.

IV

Typification and qualification of the infringement of Article 5.1.f) of the GDPR

The aforementioned infringement of Article 5.1.f) of the GDPR constitutes the commission of the infringement typified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements."

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For the purposes of the statute of limitations, Article 72 "Very Serious Offenses" of the LOPDGDD states:

"1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following offenses are considered very serious and will be subject to a three-year statute of limitations, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)"

V

Unfulfilled obligation of Article 32 of the GDPR

Article 32 "Security of Processing" of the GDPR establishes:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context,

and purposes of the processing, as well as the varying likelihood and severity of risks to the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data;
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;
- d) a process for regularly verifying, assessing, and evaluating the effectiveness of the technical and organizational measures to ensure the security of processing.

2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a result of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this Article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data may only process such data on instructions from the controller, unless required to do so by Union or Member State law.”

It is necessary to point out that the aforementioned provision does not establish a list of specific security measures according to the data being processed, but rather establishes the obligation for the controller and the processor to implement

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technical and organizational measures that are appropriate to the risk involved in the processing, taking into account the state of the art, the costs of implementation, the nature, scope, context, and purposes of the processing, and the risks of likelihood and severity for the rights and freedoms of the data subjects.

Likewise, the security measures must be adequate and proportionate to the identified risk, determining those technical and organizational measures that are appropriate considering pseudonymization and encryption, the ability to ensure confidentiality, integrity, availability, and resilience, the ability to restore availability and access to data after an incident, verification process (which is not an audit), evaluation, and assessment of the effectiveness of the measures.

In any case, when assessing the adequacy of the measures adopted, particular attention must be paid to the risks presented by the processing of data, as a consequence of the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data that could cause physical, material, or immaterial harm.

For its part, Recital 83 of the GDPR states that “(83) In order to maintain security and prevent processing from infringing the provisions of this Regulation, the controller or the processor must assess the inherent risks of the processing and implement measures to mitigate them, such as encryption. These measures must ensure an adequate level of security, including confidentiality, taking into account the state of the art and the cost of their implementation in relation to the risks and the nature of the personal data that must be protected. When assessing the risk in relation to data security, the risks arising from the processing of personal data must be taken into account, such as the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data, which are particularly likely to

cause physical, material, or immaterial harm.”

In this regard, the audit report presented by the responding party, which has been incorporated into this file, is particularly relevant. Within this report, there is a section related to “Access control, physical access, and access logging,” within which the following is indicated:

“User access will be determined by the functions they perform, establishing a mechanism that prevents them from accessing data with rights other than those authorized, and such access may only be granted, altered, or revoked by the DPO or the authorized personnel, just as physical access to the locations where the computer media are located must be secured with locks and keys. Therefore, there must be an access control policy that includes an inventory of the information, the departments with access to the information, their permissions, and privileges.

In cases where data processing may pose a high risk, an Access Log must be carried out. Such accesses must be recorded and maintained for a minimum period of two years in an Access Log that will contain the

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user, the date and time, the file accessed, and whether it has been authorized or not.

It is the responsibility of the DSPO or DSPP to control and review the mechanisms that allow for the registration of data by preparing a report on the reviews and problems detected. Additionally, they will prepare a report on the reviews conducted and the problems detected at least once a month.

Currently, the Local Corporation does not have an access control policy for information that details the inventory of information: the departments with access to the information; permissions and privileges.

However, according to what was stated to the auditor, it exists, but it is not documented.”

Given the above, in the case at hand, the absence on the part of the respondent of the use of any instrument aimed at ensuring an adequate level of security for personal data appropriate to the level of risk arising from its processing highlights a breach of Article 32 of the GDPR by failing to comply with the obligation to adopt technical and security measures appropriate to the risk. In this regard, it is noteworthy that the report specifically emphasizes that the Local Corporation has neither documented nor implemented an access control system that limits access to the data only to users who need to know such information based on their specific responsibilities.

In fact, as indicated in the fourth proven fact, the audit report, which aims to determine the situation and adequacy of the respondent to the requirements established by the regulations on data protection, qualifies it in its conclusions as “UNFAVORABLE”:

“In the auditor's opinion, the situation of the Valdemorillo City Council regarding the level of compliance with current legislation on the security of personal data concerning its processing is UNFAVORABLE.”

It is important to highlight that the described conduct represents a breach independent of the principle of confidentiality, as the absence of adequate security measures not only affects the complainant but potentially exposes the personal data of any person whose information is under the custody of the City Council. By not having adequate security measures, the integrity and protection of all personal data processed by the corporation are put at risk, reflecting a deficiency in the management of data security beyond the particular case of the complainant, which substantiates in this case the attribution of the infringement provided for in Article 32 of the GDPR.

VI

Classification and qualification of the infringement of Article 32 of the GDPR

The aforementioned infringement of Article 32 of the GDPR constitutes the commission of the infringements classified in Article 83.4 of the GDPR, which under the heading “General conditions for the imposition of administrative fines” states: “Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43; (...)”

For the purposes of the statute of limitations, Article 73 “Infringements considered serious” of the LOPDGDD indicates: “According to what is established in Article 83.4 of Regulation (EU) 2016/679, the following infringements are considered serious and shall be subject to a two-year statute of limitations:

(...) f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security appropriate to the risk of processing, as required by Article 32.1 of Regulation (EU) 2016/679.

VII

Sanction

Article 83 “General conditions for the imposition of administrative fines” of the GDPR in its paragraph 7 establishes:

“Without prejudice to the corrective powers of the supervisory authorities under Article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State.”

Furthermore, Article 77 “Applicable regime for certain categories of controllers or processors” of the LOPDGDD provides as follows:

“1. The regime established in this article shall apply to the processing for which they are controllers or processors:

[...]

c) The General Administration of the State, the Administrations of the autonomous communities, and the entities that comprise the Local Administration.

[...]

2. When the controllers or processors listed in paragraph 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution declaring the infringement and establishing, where appropriate, the measures that should be adopted to cease the conduct or correct the effects of the infringement that has been committed, except for that provided for in Article 58.2.i of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016.

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The resolution will be notified to the person responsible or in charge of the processing, to the body to which they hierarchically depend, if applicable, and to the affected parties who had the status of interested parties, if applicable.

3. Without prejudice to what is established in the previous section, the data protection authority will also propose the initiation of disciplinary actions when there are sufficient indications for it. In this case, the procedure and the sanctions to be applied will be those established in the legislation on the disciplinary or sanctioning regime that is applicable.

Furthermore, when the infringements are attributable to authorities and executives, and it is proven that there are technical reports or recommendations for the processing that have not been duly addressed, the resolution imposing the sanction will include a reprimand naming the responsible position and will order the publication in the corresponding Official State or regional Gazette.

4. The resolutions related to the measures and actions referred to in the previous sections must be communicated to the data protection authority.

5. The actions carried out and the resolutions issued under this article will be communicated to the Ombudsman or, where appropriate, to the analogous institutions of the autonomous communities. Based on the aforementioned articles, it is understood that a resolution declaring the infringement is appropriate, without prejudice to the adoption of measures to correct its effects, in the terms indicated below.

VIII

Adoption of measures

In accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame.”

In this case, the controller is required to notify this Agency within three months of the adoption of the following measures:

- Adopt the appropriate organizational and technical measures to ensure an adequate level of security for the risk, specifically preventing free and general access to the content held in the general registry of the municipality by implementing an access control system through which only access to the documentation necessary for the exercise of the functions of authorized persons is permitted.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the resolution of this procedure may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, and such conduct may lead to the initiation of further administrative sanctioning procedures.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been proven,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE that the AYUNTAMIENTO DE VALDEMORILLO, with NIF P2816000J, has infringed the following articles:

- Article 5.1 f) of the GDPR, classified in Article 83.5 of the same text.

- Article 32 of the GDPR, classified in Article 83.4 of the same text.

SECOND: TO ORDER the AYUNTAMIENTO DE VALDEMORILLO, with NIF P2816000J, that pursuant to Article 58.2.d) of the GDPR, within three months, prove that it has complied with the following measures:

- Adopt the appropriate organizational and technical measures to ensure an adequate level of security for the risk, specifically preventing free and general access to the content held in the general registry of the municipality by implementing an access control system through which only access to the documentation necessary for the exercise of the functions of authorized persons is permitted.

THIRD: TO NOTIFY this resolution to AYUNTAMIENTO DE VALDEMORILLO.

FOURTH: TO COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of Article 77.5 of the LOPDGDD.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

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If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. The interested

party must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the precautionary suspension to be concluded.

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